

1 of your close friends or loved one been accused of sexual
2 misconduct at home or in the community?

3 VENIREPERSON HENTCHEL: Again, it goes with
4 my job. I work with kids, and a lot of kids come into our
5 facility and have been the victim of physical abuse or verbal
6 or sexual abuse.

7 MR. REGAN: Have any of those kids been
8 involved with kids' misconduct as well?

9 VENIREPERSON HENTCHEL: Yes.

10 MR. REGAN: Have you been involved in
11 getting them ready for their report?

12 VENIREPERSON HENTCHEL: Yes.

13 MR. REGAN: Helping them with their
14 defense?

15 VENIREPERSON HENTCHEL: Not their defense,
16 but I went to support.

17 MR. REGAN: Have you been asked to testify
18 in their defense?

19 VENIREPERSON HENTCHEL: No.

20 MR. REGAN: Has that been in juvenile court
21 here?

22 VENIREPERSON HENTCHEL: It was in Fort
23 Scott.

24 MR. REGAN: Fort Scott?

25 VENIREPERSON HENTCHEL: Okay.

1 MR. REGAN: And you've never testified here
2 in juvenile court?

3 VENIREPERSON HENTCHEL: No.

4 MR. REGAN: Do any of you know any members
5 of the court staff? Do any of you -- sorry, in front, Ms.
6 Kretchmer?

7 VENIREPERSON KRETCHMER: Judge Tatum.

8 MR. REGAN: You know Judge Tatum?

9 VENIREPERSON KRETCHMER: Yeah.

10 MR. REGAN: I saw him this morning at jury
11 orientation. Anyone besides Judge Tatum?

12 VENIREPERSON KRETCHMER: No.

13 MR. REGAN: Are you friends or neighbors?

14 VENIREPERSON KRETCHMER: Friends.

15 MR. REGAN: Friends?

16 VENIREPERSON KRETCHMER: Yes.

17 MR. REGAN: Ms. Hentchel?

18 VENIREPERSON HENTCHEL: I work with Judge
19 Moriarty's daughter.

20 MR. REGAN: You work with Judge Kevin
21 Moriarty's daughter?

22 VENIREPERSON HENTCHEL: Yes.

23 MR. REGAN: Do you know Judge Moriarty very
24 well? He and I were young prosecutors back when I had more
25 hair and didn't need glasses, and his hair wasn't gray. Does

1 anyone else?

2 VENIREPERSON KRETCHMER: I do know Judge

3 Moriarty.

4 MR. REGAN: How so?

5 VENIREPERSON KRETCHMER: Just on a social

6 basis. We've done some things with him.

7 MR. REGAN: Do any of you know anyone who

8 has been wrongly accused of sexual misconduct in the home or

9 workplace? If so, raise your hand. Do any of you have

10 friends or relatives that have been accused of a crime that

11 they did not commit? If so, raise your right hand. Up in the

12 back there, Mr. Dewey?

13 VENIREPERSON DEWEY: Yes. My nephew was

14 accused of murder seven years ago, and DNA said he didn't do

15 it, and he was released.

16 MR. REGAN: He was released?

17 VENIREPERSON DEWEY: Yes.

18 MR. REGAN: Where was that?

19 VENIREPERSON DEWEY: His name is Dewey

20 also. It he was in Colorado.

21 MR. REGAN: Colorado.

22 VENIREPERSON DEWEY: And he's out now.

23 MR. REGAN: Thank goodness. Is there

24 anyone else that would care to respond along the lines of Mr.

25 Dewey? Are there any of you that have been accused of

1 something by the police that you didn't do, besides a minor
2 speeding ticket or traffic ticket? Have any of you had your
3 deposition taken in a civil or criminal case? Kansas doesn't
4 allow depositions in a criminal case. In Missouri they do.
5 Are there any of you that had your deposition taken? Let me
6 start back there. Mr. Dewey?

7 VENIREPERSON DEWEY: Oh, it's been about
8 fifteen years ago. It was about a traffic incident. It was a
9 deposition that was taken.

10 MR. REGAN: Did the lawyers both ask you
11 questions?

12 VENIREPERSON DEWEY: Yes.

13 MR. REGAN: Plaintiff and defense?

14 VENIREPERSON DEWEY: That's correct.

15 MR. REGAN: And anyone else on the back
16 row. Let me start with Ms. Brockmeier.

17 VENIREPERSON BROCKMEIER: I believe it was
18 a deposition, but it was about when one of my coworkers was
19 fired, and she was suing. I don't know much more about that
20 than the case. They took our side of it.

21 MR. REGAN: All right. Thank you. Mr.
22 Gadberry, a criminal case over in Missouri?

23 VENIREPERSON GADBERRY: Yes. And also when
24 I was in the military.

25 MR. REGAN: When you were in the military?

1 VENIREPERSON GADBERRY: Yes.
2 MR. REGAN: Military trials?
3 VENIREPERSON GADBERRY: Yes.
4 MR. REGAN: Anyone else? Let me ask you
5 this question as a whole, as a group to save time. Do you all
6 feel that you were treated fairly by the lawyers? Was there
7 anything about that experience that has you upset about the
8 way you were treated or questioned?
9 Mr. Gadberry, you're kind of smiling. I don't know how
10 you really feel.
11 VENIREPERSON GADBERRY: There's a
12 prosecutor in Jackson County. We kind of clashed a little bit
13 in a criminal case.
14 MR. REGAN: With the lawyer in Jackson
15 County?
16 VENIREPERSON GADBERRY: One of the
17 assistant prosecutors.
18 MR. REGAN: Do you remember which one?
19 VENIREPERSON GADBERRY: Not now, it's been
20 years ago.
21 MR. REGAN: Can you put whatever that was
22 aside and be fair?
23 VENIREPERSON GADBERRY: Oh, yes.
24 MR. REGAN: How many of you have teenage
25 children or grandchildren? Ms. Reynolds?

1 VENIREPERSON REYNOLDS: Yes.
2 MR. REGAN: We have your kids' names in the
3 questionnaire. Mr. Porter?
4 VENIREPERSON PORTER: I have
5 thirteen-year-old twins.
6 MR. REGAN: Thirteen-year-old twins. Okay.
7 Anyone else in the front row, teenage kids or grandkids? Mr.
8 Gadberry?
9 VENIREPERSON GADBERRY: Three grandchildren
10 that are teenagers.
11 MR. REGAN: Have any of you experienced
12 these kids being untruthful about important matters? I don't
13 know about whether they do laundry or brush their teeth, if
14 they do something important. If so, please raise your hand so
15 we can discuss it. Is there anyone that has teenage kids or
16 grandkids that would automatically believe whatever teenagers
17 said because of their years and the relationship with your own
18 children? Is there anyone who believes that teenagers are
19 always truthful, and I'm getting a smile or nod from you, Ms.
20 Reynolds? No, Mr. Porter?
21 VENIREPERSON PORTER: That's just a funny
22 question. No one is truthful all the time.
23 MR. REGAN: Do any of you have friends or
24 relatives besides Mr. Gadberry that were involved in criminal
25 defense work? Mr. Helfand.

1 VENIREPERSON HELFAND: My father.

2 MR. REGAN: Your dad; right?

3 VENIREPERSON HELFAND: Yes.

4 MR. REGAN: Do any of you have friends or

5 relatives that are incarcerated, in county jail or the

6 penitentiary besides Mr. Dewey? Mr. Schmidgall?

7 VENIREPERSON SCHMIDGALL: County jail, I

8 don't know if it was county jail, but I did have an uncle that

9 was in jail for a while.

10 MR. REGAN: Recently or a long time ago?

11 VENIREPERSON SCHMIDGALL: It was probably

12 fifteen years.

13 MR. REGAN: Do you remember for what?

14 VENIREPERSON SCHMIDGALL: It was for -- I

15 can't remember what the conviction was for, but it was a car

16 accident where a couple people died. It was really foggy or

17 something.

18 MR. REGAN: Thank you, sir. Have any of

19 you all been incarcerated? I see no hands. Have any member

20 of your family been charged with a crime, except for Mr.

21 Dewey? Do any of you drive by 15821 Horton Court, Overland

22 Park, Kansas more than once a month?

23 My client was involved with the Boy Scouts of America as

24 well as his local church, the Church of the Resurrection. Are

25 any of you currently involved with this church or involved

1 with scouting? Yes, sir. Mr. Schulte?

2 VENIREPERSON SCHULTE: Yeah. I would just

3 say one thing I thought of. I did work at a Boy Scout camp in

4 Missouri around that time frame.

5 MR. REGAN: Is that the one named after our

6 former mayor?

7 VENIREPERSON SCHULTE: Yes.

8 MR. REGAN: Were you in Tribe Mic-O-Say?

9 VENIREPERSON SCHULTE: I was.

10 MR. REGAN: Luke's father was as well. You

11 know, as the prosecutor told you, we have no burden. Many

12 lawyers, as Mr. Gadberry can tell you, will argue the case

13 beyond a reasonable doubt, will put on evidence and challenge

14 what the State has done and ask the jury to hold to that

15 yardstick to beyond any reasonable doubt and find that the

16 State's burden has been lacking on that particular case. But

17 my experience is human nature, being what it is, people want

18 to hear a little bit from the defense. So we're going to call

19 some witnesses when the State is done. And I'm going to

20 mention some of the names of folks that may be called by us or

21 the State and ask you if you know those. And I'll read the

22 list in its entirety: Mark Childress, who is a chiropractor

23 in this area. Lee Jost, who was an executive with the church

24 we discussed. Nancy Brown, who was a Kansas legislator. I

25 think she may have been speaker of the house at that time.

1 Marcus Blanckensee, who was a boy who was friends with Scott's
2 son, Preston; Nick Koch, who is going to be the State's first
3 witness today. Sue Moore, who you have seen in the back of
4 the courtroom; and Scott's children, Kirsten and Preston. Do
5 any of you think you might know any of these folks as
6 mentioned? Mr. Dewey?

7 VENIREPERSON DEWEY: As I mentioned before.

8 MR. REGAN: Yes, sir, got it. Anyone else?

9 Have any of you served on a federal or state grand jury?
10 They have them here. It's kind of a different process. Where
11 I come from, they say no one is invited but everyone gets
12 indicted. There's no defense lawyers to preserve anyone's
13 rights. Folks are allowed to issue documents as guided from
14 the prosecutor.

15 Has anyone served on that? Has any of you served on a
16 jury? Served on a hung jury where a jury was unable to reach
17 a verdict? If so, please raise your hand so we can talk about
18 it for just a moment.

19 The prosecutor asked you if you know anyone in her
20 office. The district attorney in this case is Steve Howe.
21 Did anyone work for or against Mr. Howe in his election
22 campaign? Do any of you know Steve? He was elected a term or
23 two ago.

24 The DA's Office has all kinds of employees. They have
25 several floors in this building. Do any of you have

1 experience in this office having friends or relatives that
2 work there? Have bad checks, anything like that? Do any of
3 you work for the Johnson County DA's Office?

4 Now, the first thing you all are going to do when the
5 case is submitted to you, we're going to have evidence today
6 and tomorrow. There will be closing arguments, and the Judge
7 will read the instructions. And you're going to go in that
8 jury room over there, and the first thing you're going to do
9 is sit down and elect the presiding juror, foreperson. I'd
10 like to ask you, how many of you have six or more people under
11 supervision where you work? Mr. Helfand.

12 VENIREPERSON HELFAND: Seven.

13 MR. REGAN: Ms. Reynolds?

14 VENIREPERSON REYNOLDS: Six.

15 MR. REGAN: Anyone else? Those of you that
16 served on a jury in the past, were any of you presiding juror
17 or foreman sometimes we call it?

18 The prosecutor touched on the burden of proof. And those
19 of you that served in a civil case, do you understand that the
20 burden of proof in a criminal case is different? It's beyond
21 a reasonable doubt in a criminal case. The yardstick is
22 different. In a civil case it's the preponderance of the
23 evidence. In a criminal case, although it can't be defined
24 for you, it's substantially more. Can everyone grasp that, or
25 have any problem or disagree with it? We believe this case

1 will hinge in a large part on whether or not the jury believes
2 the testimony of a young man named Nicholas Koch, a family
3 friend.

4 Other than you, ma'am, does anyone else on the panel have
5 any experience with interviewing young victims of alleged
6 criminal activity besides Mr. Gadberry. Do any of you have
7 any experience in employment in the juvenile system besides
8 Ms. Hentchel or Mr. Gadberry? All right.

9 Some more tough questions that require candid answers.
10 And in these questions there are no correct answers, but your
11 candor would be greatly appreciated.

12 The State may choose to enter evidence, uncharged
13 evidence, from 2005 and 2006, which were not prosecuted in
14 another county, Linn County, Kansas.

15 These allegations were made at a Youthfront campout. The
16 prosecutor declined to file charges. The Court will instruct
17 you that this evidence will only be considered in limited
18 purposes. Have any of you heard about these types of
19 allegations or know anything about that? Is there anyone that
20 if they heard such evidence would automatically believe that
21 my client is guilty of crimes charged in this case due to the
22 evidence of the other uncharged allegations? If so, please
23 raise your hand. I don't see any hands.

24 Would you be unable to presume him innocent if upon
25 hearing any of this evidence, do any of you think, well, since

1 the State put on some witnesses about something that may have
2 happened in '05 and '06, he's guilty of this case? If so,
3 please raise your hands? Would hearing that type of evidence
4 cause you to disregard the evidence of his innocence? I see
5 no hands, and I appreciate that.

6 Have any of you been affiliated with the Youthfront
7 Organization? They were involved in sponsoring these types of
8 camps in Linn County.

9 Three of the most important fundamentals of our system of
10 justice guaranteed by the Bill of Rights and the Constitution
11 of the State of Kansas, the United States Constitution, my
12 client is presumed innocent.

13 As Erika told you, if you voted today right now, the vote
14 would be "not guilty." Does anyone have a problem with that?
15 Right now he's cloaked with the presumption of innocence, and
16 the only people who can rip that cloak off after you hear all
17 the evidence in the case is you. And only if you're formally
18 convinced that he did each and every element of each and every
19 crime that he's charged with, and you take issue with that or
20 have a problem with that? And your verdict must be unanimous.
21 Unlike some civil cases, it can't be five to one, four to two,
22 it must be six to zero. Do any of you take issue with that?
23 Is there anyone here who before the case starts believes that
24 there's any inference of guilt from Scott Moore just because
25 he's sitting there?

1 As Mr. Gadberry can tell you, the State can charge anyone
2 they want, but under our Bill of Rights only a jury can say
3 guilty or not guilty.

4 Do you understand that we carry no burden in this case,
5 and that the State must prove to you beyond the unanimous
6 satisfaction that beyond a reasonable doubt that my client did
7 what the State says he did. Do any of you have an issue or
8 problem with that?

9 If you understand that if the State fails to meet its
10 burden of proof, that the only verdict can be not guilty?

11 Now, do you understand that we've moved kind of fast with
12 all of this information. We're unloading on you, but my
13 client is charged with two separate counts, and what that
14 means is when you all get to deliberating and discussing them,
15 that they have got to be considered separately. It's not,
16 well, if he did one, he did the other. They each get a fair
17 look under your microscope of reasonable doubt. Do any of you
18 have a problem with that?

19 Under the constitution of this country and the State of
20 Kansas my client has the right not to testify. If we choose
21 not to put him on because the State has failed to make its
22 burden, are there any of you that would hold it against him or
23 let that enter into your deliberations? Because the law says
24 you can't.

25 Sometimes we have jurors that say, "Well, yes, I would,"

1 and it's important to know who they are. If so, feel free to
2 raise your hand.

3 To get to the truth of this case, we'll be forced to
4 cross-examine some of the State's witnesses. I'm going to
5 tell you in advance that some of that cross-examination may be
6 vigorous, and they say cross-examination is the best search
7 engine for the truth known to man to get to what really
8 happened.

9 Is there anyone that would hold it against my client if I
10 were vigorous in cross-examining witnesses against him? Some
11 of these witnesses are relatively young, maybe 17 or 18, 19
12 years old now. Is there any of you that would hold it against
13 Scott Moore if his attorney were vigorous in cross-examining
14 them.

15 The prosecutor may get vigorous and get vigorous against
16 my people too. Have any of you followed the trial and verdict
17 in the Jerry Sandusky case, the coach out at Penn State. Who
18 hasn't? Everybody has heard of that case. To make it easier
19 on the court reporter, Mrs. O'Malley, everyone has heard about
20 that case. That's the kind of case that gets to you. You
21 probably have strong personal feelings about it, about what he
22 did and tried to cover up against what was alleged there at
23 Penn State. The testimony that was on the news every night.
24 Some of these kids all these years later. Is there any of you
25 that have feelings that are stirred up that would make it

1 difficult or impossible for you to be fair in this case? The
2 allegations are nowhere similar, but the issues are a little
3 similar.

4 Are there any of you that are just dead-set strong
5 against sitting as a fair and impartial juror in a case of
6 this nature? If so, let us know now.

7 Do any of you have experience of any kind, close friend
8 or family member making a complaint about being sexually
9 molested at church or scouting? I see no hands. Along the
10 lines of the Sandusky matter in the Kansas City Star, how many
11 of you take the newspaper and read it daily? Just two, Mr.
12 Helfand and Ms. Kretchmer. Have you seen the expose they had
13 about abuse in a scouting camp?

14 VENIREPERSON KRETCHMER: Yes.

15 VENIREPERSON HELFAND: Yes.

16 THE COURT: Did you read articles?

17 VENIREPERSON KRETCHMER: I scanned them.

18 MR. REGAN: You scanned them?

19 VENIREPERSON KRETCHMER: Uh-huh.

20 MR. REGAN: Is there anything about reading
21 those articles that would make it difficult for you to be fair
22 and impartial in this trial?

23 VENIREPERSON KRETCHMER: No.

24 MR. REGAN: Having heard what this case is
25 about, have any of you had life experiences of any kind with

1 friends or family members similar to the allegations in this
2 case as a victim or accused that would make it difficult or
3 impossible for you to be fair in this case? I see no hands.

4 Have any of you served as a camp leader for a church or
5 scouting camping? Mr. Schulte?

6 VENIREPERSON SCHULTE: Yes.

7 MR. REGAN: How often, sir?

8 VENIREPERSON SCHULTE: I was a camp leader.

9 MR. REGAN: Yes.

10 VENIREPERSON SCHULTE: I worked at this boy
11 scout camp for four or five summers.

12 MR. REGAN: At the Roe Bartle Camp?

13 VENIREPERSON SCHULTE: Yes.

14 MR. REGAN: Mr. Helfand?

15 VENIREPERSON HELFAND: I have experience
16 with summer camps supervising over the past decade.

17 MR. REGAN: Thank you, sir. Anyone else?
18 Do any of you have a close friend or relative that has been
19 wrongly accused from a church, scouting campout? If so,
20 please raise your hands. Have any of you served on a church,
21 scouting or civic review board where allegations of sexual
22 misconduct are reviewed and evaluated? I see no hands.

23 Have any of you served on boards or committees of
24 nonprofit organizations? There's someone in the front row.
25 Ms. Hentchel?

1 VENIREPERSON HENTCHEL: I work for a
2 nonprofit, but I don't work on the boards. But I work at a
3 nonprofit.

4 MR. REGAN: Ms. Brockmeier?

5 VENIREPERSON BROCKMEIER: I'm on several
6 committees with my church.

7 MR. REGAN: Which church?

8 VENIREPERSON BROCKMEIER: Beautiful Savior
9 Lutheran Church.

10 MR. REGAN: Thank you. Who else? How many
11 of you feel, if any, that a jury should find the defendant
12 guilty if the media points to guilt or just because the
13 prosecutor has charged them? How many of you all watch *Court*
14 *TV, Criminal Minds, Investigation Discovery* or *CSI*, shows of
15 that nature? If so, please raise your hand. Mr. Dewey? Ms.
16 Hentchel? That's it? Do any other jurors watch shows like
17 *Law and Order*, anything like that?

18 Here's why I ask the question, and I'm winding down.
19 That's not how it really works. Those folks are actors and
20 actresses. They get a new packet every week of lines to learn
21 and things to read, and it's all scripted, and that's not how
22 it's going to happen here. No one is going to come up in at
23 the last minute from the back door and say, "I killed Cock
24 Robin" and fall on the carpet.

25 What that means is we want six jurors tried and true with

1 open minds, open ears, open hearts, open eyes, and give my
2 client a fair trial and render a verdict solely on the
3 evidence in this case. Are there any of you who can't do that
4 for any reason?

5 I appreciate your responses, and I'm very sorry we won't
6 be able to keep all of you. You're a wonderful jury, and we
7 pass the panel.

8 THE COURT: Thank you, Counsel. We will
9 now begin the process where we pare you down to six jurors.

10 (Whereupon, the following jurors were
11 stricken from the panel: Mr. Gadberry, Ms. Hentchel, Mr.
12 Helfand, Ms. Kretchmer, Ms. Brockmeier, Mr. Dewey.)

13 MR. REGAN: Judge, may I get Mr. Whitworth
14 for a minute, please?

15 THE COURT: Yes. Okay. If I read your
16 name, I will ask that you please stand: Ms. Reynolds, Mr.
17 Schulte, Mr. Porter, Ms. Beckemeier, Ms. Chatterton, and Mr.
18 Schmidgall. Those of you that are standing will be jurors in
19 this case. Those of you that are seated will be excused.
20 Have a seat in the gallery. If you will remain standing for a
21 moment, and those of you in the gallery, we're going to pick
22 an alternate, and it's going to be quick. But those of you
23 who have been seated, have a seat in the gallery. Thank you.

24 Ms. Reynolds, stay where you are and Mr. Schulte. Mr.
25 Porter, scoot down one, and, Ms. Beckemeier, scoot down one.

1 Ms. Chatterton, I'm going to ask that you go up and sit next
2 to Ms. Beckemeier. And Mr. Schmidgall, take the last seat.
3 Remember who you are standing by.

4 After we pick the alternate, we are going to pick three
5 names, and they are going to have to have a seat in the front
6 here. Once an alternate is picked, you six will be seated in
7 the front row in that order. So you can have a seat right
8 now, and, Ms. Nelson, please draw three names.

9 (Whereupon, the following names were called
10 forward: Rocsa Holzberg, H-E-L-Z-B-E-R-G; Brian Voell,
11 V-O-E-L-L; Katherine Burge, B-U-R-G-E.)

12 THE COURT: Okay. We're going to pick one
13 alternate and each counsel will get one strike. Ms. Helzberg,
14 are you at the tail end of this and doing better or just
15 getting sick?

16 VENIREPERSON HELZBERG: I've been home for
17 a week. I'm not contagious, but they said it's going to go on
18 for a couple of days.

19 THE COURT: Counsel, do either of you have
20 any objection to excusing her?

21 MR. REGAN: No, Judge.

22 MS. RASMUSSEN: No, Your Honor.

23 THE COURT: I'm sorry that you have had to
24 come up here and endure all of this. I'm going to excuse Ms.
25 Helzberg. Ms. Nelson, please call another name.

1 (Whereupon, Robert Giffen, G-I-F-F-E-N, was
2 called forward.)
3 THE COURT: We're going to go through this
4 very quickly. I know you've heard all the questions
5 previously. Has anybody moved from Johnson County?
6 VENIREPERSON GIFFEN: No.
7 VENIREPERSON VOELL: No.
8 VENIREPERSON BURGE: No.
9 THE COURT: Do any of you know anything
10 about this case?
11 VENIREPERSON GIFFEN: No.
12 VENIREPERSON VOELL: No.
13 VENIREPERSON BURGE: No.
14 THE COURT: Do you know any of the lawyers?
15 VENIREPERSON GIFFEN: No.
16 VENIREPERSON VOELL: No.
17 VENIREPERSON BURGE: No.
18 THE COURT: Do any of you know the
19 defendant?
20 VENIREPERSON GIFFEN: No.
21 VENIREPERSON VOELLE: No.
22 VENIREPERSON BURGE: No.
23 THE COURT: Do any of you know any of the
24 witnesses, the names that were called. Do you recognize any
25 of the names?

1 VENIREPERSON GIFFEN: No.
2 VENIREPERSON VOELL: No.
3 VENIREPERSON BURGE: No.
4 THE COURT: Is there any reason any of you
5 can't sit today? Are any of you sick? Can everybody be here?
6 Can everybody hear everything here okay?
7 Ms. Rasmussen, any questions?
8 MS. RASMUSSEN: My only comment, I guess or
9 question to you, you guys were all sitting back there very
10 patiently. Were you listening to all the questions that were
11 set forth? You know what kind case it is, what kind of
12 charges there is. Is there anything about this case, type of
13 case, or any information that we've discussed today that made
14 you kind of perk your head to the side when we are talking
15 about and think: I might have been raising my hand if I were
16 up in the jury box? I see no hands.
17 Your Honor, at this time, I pass the alternate panel for
18 cause.
19 THE COURT: Mr. Regan.
20 MR. REGAN: May it please the Court.
21 Mr. Giffen, are you related to Tom Giffen, a lawyer over
22 in Liberty, the city prosecutor over there?
23 VENIREPERSON GIFFEN: No. My father is
24 Scott Giffen who was attorney.
25 MR. REGAN: Your dad was?

1 VENIREPERSON GIFFEN: Yes. He just retired
2 in the last year or so.
3 MR. REGAN: What firm?
4 VENIREPERSON GIFFEN: Long and Giffen,
5 Jerry Long.
6 MR. REGAN: Do you know Jerry very well?
7 VENIREPERSON GIFFEN: Yeah.
8 MR. REGAN: He practices out here on
9 Johnson Drive?
10 VENIREPERSON GIFFEN: Yes.
11 MR. REGAN: Kind of down on Mission Road?
12 He's a character.
13 VENIREPERSON GIFFEN: Yeah, he's a
14 character.
15 MR. REGAN: Is your wife a social worker?
16 VENIREPERSON GIFFEN: Yes.
17 MR. REGAN: Does she work with cases of
18 this nature, sir?
19 VENIREPERSON GIFFEN: She hasn't in a
20 while. She did early on. She worked for Johnson County
21 Mental Health for two or three years. Now she's in a recovery
22 center for a battered women's shelter.
23 MR. REGAN: She works at a battered women's
24 shelter, which one?
25 VENIREPERSON GIFFEN: I'm not sure. She's

1 only been there a month or so.

2 MR. REGAN: In her career, does she

3 sometimes work with kids that make complaints of a sexual

4 nature against adults?

5 VENIREPERSON GIFFEN: Yes.

6 MR. REGAN: On occasion, does she work with

7 kids who are accused of sexual misconduct?

8 VENIREPERSON GIFFEN: Yes.

9 MR. REGAN: Does she come home and talk to

10 you, talk with you about these cases?

11 VENIREPERSON GIFFEN: From time to time,

12 you know, not in detail. She's doesn't when she's not allowed

13 to, but she will tell me about things.

14 MR. REGAN: Is there anything about that,

15 sir, that would make it difficult or impossible to be fair to

16 my client?

17 VENIREPERSON GIFFEN: No, sir.

18 MR. REGAN: I appreciate that. I pass the

19 alternate panel for cause, Judge.

20 THE COURT: Thank you, Mr. Regan. We will

21 now pare you down to one alternate.

22 (Whereupon, the following names were

23 stricken: Mr. Voell, Mr. Burge.)

24 THE COURT: Mr. Giffen, you are going to be

25 our alternate, and Mr. Voell and Ms. Burge, you can step down.

1 Those of you who are seated, we've inquired whether
2 anyone else needs you and we have not heard back, which means
3 you have to go back across the street, and you need to go back
4 over there and be released. There is a possibility that Judge
5 Welch may need extras. I know it's a long morning. Thank you
6 very much for your patience and consideration for this Court.
7 Would the clerk please swear the jury to try the issues of the
8 cause.

9 (Whereupon, the jury panel was duly sworn.)

10 THE COURT: I have an instruction before we
11 break. It's kind of long. It's something I need to give you
12 by law. I know it's been a long morning. Be patient. This
13 is important. I'm going to give you this instruction, and
14 we're going to take a nice break. When you come, you will
15 meet in the jury room back here -- actually, Ms. Nelson when
16 you first break actually will give you a button that says
17 "juror" on it so you can wear it around the courthouse so
18 people will know that they are not to talk to you.

19 This is a preliminary instruction that I have to give you
20 before we get started with anything else.

21 Now that you have been chosen as jurors for this trial,
22 you are required to decide the case based solely on the
23 evidence and exhibits that you see and hear in this courtroom.
24 At the end of this case, I will give you instructions about
25 the law that you must apply, and you will be asked to use that

1 law together with the evidence that you have heard to reach a
2 verdict.

3 In order for your verdict to fair, you must not be
4 exposed to any other information about the case, the law or
5 any of the issues involved in this trial during the course of
6 your jury duty. This is very important, and so I want to give
7 you some very detailed explanation about what you should do
8 and not do while you are jurors.

9 First, you must not try to get information from any other
10 source other than what you see and hear in the courtroom.
11 This means you may not speak to anyone, including your family
12 or friends about the case. You may not use any printed or
13 electronic sources to get information about the case or any of
14 the issues involved. These sources include the Internet,
15 reference books, dictionaries, newspapers, magazines,
16 television, radio, computers, Blackberries, iPhones, smart
17 phones, PDAs or any other electronic device.

18 You must not do any personal investigation about the
19 issues, including visiting any of the places involved or use
20 Internet maps or Google Earth to examine the scene.

21 You may not talk to any possible witnesses or create your
22 own demonstrations or reenactments of the events which are the
23 subject of the case.

24 Second, you must not communicate with anyone about the
25 case or your jury service, and you must not allow anyone to